

MUTUAL NON-DISCLOSURE, NON-CIRCUMVENTION & INTELLECTUAL PROPERTY AGREEMENT

This Agreement is entered into on:

Date: _____

Between

Hello Hyperlocal (Pty) Ltd

Represented by:

JC Snooke

("Disclosing Party")

and

("Receiving Party")

1. Purpose

The parties wish to discuss the design and development of a hyperlocal community platform currently known as **Hello Linden**, together with future neighbourhood platforms operating under the **Hello Hyperlocal** brand.

In doing so, confidential information, intellectual property, concepts, strategies and business information will be shared.

This Agreement protects those discussions.

2. Confidential Information

Confidential Information includes, but is not limited to:

Business concepts

Brand strategy

Business plans

Revenue models

Financial models

Pricing

Marketing strategies

Community engagement strategies

App concepts

Website concepts

Software architecture

Wireframes

Designs

Logos

Brand identity

Taglines

Slogans

Domain names

Source material

Documents

Presentations

User experience

User interface

Community marketplace concepts

Future product ideas

Expansion strategies

Technical documentation

Client information

Supplier information

Any verbal discussions relating to the project.

Whether communicated verbally, visually, electronically or in writing.

3. Intellectual Property

The Receiving Party acknowledges that all intellectual property disclosed before, during and after this engagement remains the exclusive property of JC Snooke and/or Hello Hyperlocal.

This includes:

The Hello Hyperlocal brand

Hello Linden

Future Hello suburb brands

Love Where You Live

Rediscover Your Neighbourhood

Business concepts

Revenue model

App concepts

Website concepts

Community platform

Marketplace

User experience

Design direction

Documentation

Presentations

Marketing concepts

Expansion model

All derivative works based upon these concepts.

Nothing contained in this Agreement transfers ownership of any intellectual property.

4. Ownership of Development

Unless specifically agreed otherwise in writing:

All software

Source code

Designs

Artwork

Graphics

Wireframes

Databases

APIs

Documentation

User interface designs

User experience designs

and all work created during the engagement become the exclusive property of Hello Hyperlocal upon payment for the agreed work.

The developer retains no ownership rights unless specifically agreed in writing.

5. Confidentiality

The Receiving Party agrees that it shall not:

Disclose confidential information to any third party.

Copy or distribute confidential material.

Use the information for any purpose other than developing Hello Linden.

Discuss the project publicly.

Share concepts with competitors.

Use any part of the concept for another client.

6. Non-Circumvention

The Receiving Party agrees that it will not directly or indirectly:

Develop a competing platform using substantially similar concepts.

Approach community organisations using the Hello concept.

Approach the Linden Community Association regarding this concept.

Approach future Hello communities.

Replicate the business model.

Solicit Hello Hyperlocal clients, partners or investors using confidential information.

Introduce substantially similar products or services based upon the disclosed concept.

This clause remains effective for five (5) years following termination of this Agreement.

7. Return of Information

Upon request, the Receiving Party shall immediately:

Return all documents.

Delete digital files.

Destroy copies.

Remove backups where reasonably possible.

Confirm destruction in writing if requested.

8. Independent Development

Nothing prevents the Receiving Party from developing unrelated software or products that were independently created without reference to Hello Hyperlocal's confidential information.

However, the Receiving Party acknowledges that ideas, concepts or materials disclosed during this engagement may not be reproduced, adapted or commercialised without prior written consent.

9. No Licence Granted

No licence or ownership rights are granted through this Agreement.

All intellectual property remains the exclusive property of Hello Hyperlocal.

10. Duration

Confidentiality obligations survive for five (5) years from the date of disclosure.

Ownership of intellectual property survives indefinitely.

11. Governing Law

This Agreement shall be governed by the laws of the Republic of South Africa.

Any disputes shall be subject to the jurisdiction of the South African courts.

12. Entire Agreement

This document constitutes the full agreement regarding confidentiality and intellectual property between the parties.

Any amendments must be made in writing and signed by both parties.

SIGNED

For Hello Hyperlocal

Name:

JC Snooke

Signature:

Date:

Receiving Party

Company:

Representative:

Signature:

Date:
